

****January 13, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed in 2024 an investigation into the operator Medical Center Unirea S.R.L. and found a violation of the provisions of Article 24 and Article 32 of Regulation (EU) 2016/679 (GDPR). As such, the operator was sanctioned with a fine of 9,953 Lei (equivalent to the amount of 2,000 Euro). The investigation was initiated following a complaint regarding a possible violation of Regulation (EU) 2016/679 concerning the security of personal data. The complainant reported that, at a medical work point for biological sample collection of the operator, the access credentials to its email account were publicly exposed by being displayed on the computer monitor. Consequently, it was found that the operator had not adopted appropriate technical and organizational measures to ensure a level of security commensurate with the risk of processing, including the ability to ensure the confidentiality of personal data of data subjects, which allowed unauthorized access to this data, at least at the time of the incident report. As such, this act constitutes a violation of the provisions of Article 32 of Regulation (EU) 2016/679, and the operator was sanctioned with a fine. Additionally, under Article 58 paragraph (2) letter d) of the GDPR, the following corrective measures were ordered: training of individuals acting under the authority of the operator regarding their obligations under the provisions of the GDPR, including regarding the risks and consequences involved in the processing of personal data; adoption of an updated password policy that includes rules regarding the confidentiality of user credentials. The operator has paid the established contravention fine.

****Legal and Communication Department****

****N.A.S.P.D.C.P****